Draft Constitution of a Knowledge-Based Sortition Democracy

Discussion draft 0.2.1 | Public working version | 31 October 2026

This discussion draft sets out the jointly developed principles of a knowledge-based sortition democracy. Compared with version 0.1, it includes explicit dimensions of suitability for office, safeguards against manipulation of qualification requirements, and a qualified AI veto concerning future changes to those requirements. The appendix distinguishes agreed principles from proposals and unresolved implementation issues.

Why this draft is open for public discussion

Despite political disagreements, we must live together and shape a shared future. Yet political camps increasingly treat one another as enemies: the left opposes the right, and the right opposes the left. Even people whose views we reject can identify legitimate problems. Their arguments deserve serious examination without legitimising hatred, discrimination, or unsupported claims.

Social media can amplify outrage, disinformation, and radicalisation. When warnings and legitimate concerns are ignored, dismissed wholesale, or played against one another for years, conflicts become entrenched. Some developments should have been addressed earlier. Missed opportunities cannot simply be reversed. That is precisely why continuing as before is not enough: we must now work together on better, verifiable ways of making political decisions.

This draft is a starting point for public discussion, not a claim to authority. People with different political perspectives, lived experiences, and areas of expertise are explicitly invited to criticise, challenge, falsify, and improve it. Nobody is expected to adopt another person's ideas without question; what matters is the willingness to examine them fairly. Human dignity, fundamental rights, and peaceful democratic participation remain indispensable.

Preamble

Recognising that public power must serve the common good and must never become the permanent possession of individuals, we propose a constitutional order of shared responsibility. Professional expertise, lived experience, equal human dignity, and public accountability are to be brought together. The state protects freedom and fundamental rights, gives everyone access to civic education, and organises its institutions so that mistakes, abuse, or the failure of any individual cannot endanger the entire system.

I. Fundamental constitutional order

Article 1 – Purpose of the state

Public authority serves the well-being of the population, the protection of human dignity and freedom, and the long-term preservation of the natural and social foundations of life. Exercising it is a temporary public responsibility, not a personal entitlement to rule.

Article 2 – Origin and limitation of public authority

All public authority derives from the people. It is exercised by randomly selected, accountable institutions and through procedures for direct public participation. Powers are separated; no institution may combine all decision-making authority, oversight of its own decisions, and control over the limits of its own jurisdiction.

Article 3 – Equality and fundamental rights

All persons are equal before the law. Human dignity, bodily integrity, freedom of expression and information, freedom of conscience, privacy, effective legal remedies, and protection against discrimination must be guaranteed. The precise catalogue of fundamental rights remains to be developed. A knowledgeable majority may not arbitrarily deprive minorities of fundamental rights.

Article 4 – Transparency and judicial protection

Public decisions must be reasoned and their essential evidentiary foundations documented publicly. Permissible confidentiality must be narrowly limited and subject to independent oversight. Anyone whose rights are affected by state action must have access to independent courts.

II. Government and legislation

Article 5 – Public office as a civic duty

Service in a governing or legislative institution is, in principle, a temporary civic duty. Eligible individuals may be selected by lot and required to serve. An independent body must permit exemptions or deferrals for substantial health, family, caregiving, conscientious, or other serious personal hardship. No one may lose their basic livelihood because of such service.

Article 6 – Independent selection by lot

The eligibility conditions for each public institution must be published in advance. Participants are selected by a verifiable lottery from the applicable eligible population. Neither current officeholders nor individual interest groups may control selection procedures or eligibility rules for their own advantage.

Article 7 – Professional suitability for government office

Leadership positions require demonstrable professional and personal suitability. Requirements must relate to the actual duties of the position and recognise professional practice and other verifiable competencies alongside formal education. Independent, rotating assessment panels decide eligibility. Rejections must be reasoned and open to judicial review.

Article 8 – Required dimensions of suitability

Admission to government office requires assessment in three dimensions: (1) personal integrity and the capacity to exercise power responsibly; (2) a role-specific minimum level of cognitive ability, including judgement, logical reasoning, and handling uncertainty; and (3) the necessary domain knowledge and practical competencies. Every requirement must be demonstrably relevant and proportionate to the office; equivalent routes to qualification must be recognised. General intelligence scores and formal educational credentials alone must not create exclusion thresholds immune to scrutiny.

Article 9 – Collegial government

Executive authority is exercised by a governing council chosen by lot. It takes decisions of major significance collectively. The chair should rotate regularly and must not become a permanently superior source of power. Control over the judiciary, security institutions, and public finances may not be concentrated in one person. The council's size and voting procedures remain to be specified.

Article 10 – Terms of office and reappointment

Government offices are held for limited periods; immediate reappointment to the same leadership office is prohibited. A four-year term is the current working assumption. The two legislative chambers should have shorter or staggered terms to combine renewal with institutional continuity.

Article 11 – Advisory transition period

After a change of government, the former government remains available to advise its successor for two years. The new government is not bound by that advice. Under procedures defined by law, former officeholders and other independent advisers may request an expert review or an informed public referendum based on substantiated concerns. This advisory role grants no direct executive power.

Article 12 – Chamber of Expertise

The first legislative chamber is selected by lot from an interdisciplinary pool of qualified individuals. It reviews bills for their scientific foundations, technical and practical feasibility, cost, risks, and long-term consequences. Expert criticism must be reasoned and documented.

Article 13 – Citizens' Chamber

The second legislative chamber is selected by a representative lottery from the population. Regions, age groups, life circumstances, and socioeconomic backgrounds must be adequately represented. Before binding decisions on substantive questions, members receive sufficient time, independent information, and topic-specific preparation. An academic degree is not required for eligibility.

Article 14 – Legislative procedure

Laws generally require approval by both chambers. Disagreements first go through a publicly accountable conciliation process. Persistent deadlock can be referred to a procedure for an informed public referendum. Government, legislative chambers, and the independent judiciary perform distinct functions. Rules on legislative initiative, quorum, and promulgation remain to be established.

III. Political participation and substantive decisions

Article 15 – Universal access to political participation

Every citizen has the right to submit proposals, express criticism, examine public decisions, and initiate procedures for political review. No one may be permanently denied the opportunity to participate in a binding vote on a substantive issue because of educational level or social background.

Article 16 – Topic-specific demonstration of knowledge

Before voting in a binding referendum on a substantive issue, a person must demonstrate a minimum understanding of that issue. Free, accessible, and comprehensible learning materials must be provided. Assessments may test verifiable facts, potential consequences, and uncertainties, but not political attitudes or the preferred voting choice. Retakes, independent review of questions, and avenues of appeal must be available.

Article 17 – Informed public referendum

Within a defined jurisdiction, a valid referendum may confirm, repeal, or replace a decision of the government or the legislative chambers with a legally permissible alternative, and its result is binding. Independent advisory bodies and a sufficiently large part of the population must both have the right to initiate such votes. Thresholds, deadlines, scope, and safeguards against manipulative question wording remain to be determined.

Article 18 – Knowledge and value judgements

Factual claims about the effects of public measures must be open to scientific examination. However, no expert body may determine societal goals and value judgements solely on the basis of its expertise. Information provided before referendums should clearly distinguish established evidence, uncertainty, and political value choices.

IV. Suitability, integrity, and checks on power

Article 19 – Psychological suitability assessment

Before appointment to government office, several independent specialists must conduct a comprehensive role-specific psychological assessment. Particular attention must be paid to documented manipulative, exploitative, or seriously irresponsible behaviour, as well as the ability to reflect critically on one's conduct and treat others respectfully. A diagnosis or single test score alone does not justify exclusion. Neuroimaging methods such as MRI or fMRI may be used for suitability assessments only if their individual predictive validity has been demonstrated and fundamental rights are protected.

Article 20 – Multiple assessments and protection against error

Role-specific personal suitability must be established positively using several independent, scientifically sound sources of information. Substantial documented indications of seriously manipulative, exploitative, or abusive patterns of conduct require further investigation; no appointment is made until that investigation concludes. Absolute diagnostic certainty cannot be assumed scientifically. Assessment methods must be reviewed regularly for validity, bias, and vulnerability to manipulation. The institutions developing eligibility criteria must be organisationally separate from those assessing individual candidates. Individuals are entitled to data protection, an explanation of decisions, and effective independent review.

Article 21 – Continuous integrity review

Leadership behaviour and suitability relevant to the office must be independently reviewed at regular intervals during a term. Investigations triggered by specific concerns require substantiated facts. Psychological health data remain confidential; dissenting political views are not evidence of unsuitability. Temporary restrictions and removal from office require clear legal grounds, independent decisions, and effective rights of appeal.

Article 22 – Social experience period

Before assuming government office, a six-month period of structured social experience must allow candidates to encounter conditions resembling those of the lowest-income segments of the population. Special financial privileges should be excluded during this period. Dignity, health, essential support, and the rights of children and dependent relatives remain protected. The period must be independently supervised and evaluated.

Article 23 – Independent adversarial review

Before final adoption, every public decision of major significance must ordinarily be examined by an independent group selected by lot from appropriately qualified individuals. Its explicit task is to challenge assumptions, identify overlooked risks, find disconfirming evidence, and develop viable alternatives. The government must provide reasoned replies to substantial objections. The review group does not possess a general veto of its own. In an acute emergency, prior review may exceptionally be replaced by mandatory subsequent review.

Article 24 – Independent oversight institutions

An independent integrity council, an independent judiciary, and external audit bodies oversee the exercise of public office. None of these institutions may alone determine its own powers, composition, and oversight arrangements. Investigations, decisions about interim measures, and judicial dispute resolution must be institutionally separated.

Article 25 – Conflicts of interest and improper enrichment

Relevant financial and personal conflicts of interest must be disclosed. Affected officeholders must recuse themselves from corresponding decisions. Gifts, concealed benefits, misuse of public resources, and unauthorised use of privileged information are prohibited. Appropriate cooling-off periods and disclosure duties must govern subsequent lobbying activities.

Article 26 – Protection of the oversight framework

No public institution may unilaterally change, weaken, or abolish the rules governing its own oversight. Such changes require independent review and a specially protected constitutional amendment procedure. Changes that weaken oversight may not take effect during the term of the government that initiated them. The core of the separation of powers, effective legal remedies, and protection of fundamental rights may not be removed.

Article 27 – Changes to suitability requirements

Following the democratic establishment of this constitutional order, eligibility requirements for public leadership may be changed only through a qualified, publicly accountable procedure. Every amendment must be substantively justified in relation to the office and assessed for its effects on the composition of the eligible population. The procedure includes independent scientific assessment, explicit adversarial review, and constitutional scrutiny. Amendments may not be designed solely to favour or disadvantage particular social groups systematically. Current requirements, their rationale, and all changes must remain publicly documented.

Article 28 – Independent AI review and a qualified veto

Once sufficiently capable AI systems have demonstrated individual and institutional reliability under independent evaluation, and their deployment has been legally authorised, changes to eligibility requirements must additionally be reviewed by at least three AI systems developed and operated as independently as practicable. Their assessment covers scientific justification, relevance to office, risks of bias and abuse of power, and potential alternatives. A positive collective assessment is required for amendment through the ordinary procedure; the method for reaching that assessment must be fixed in advance. A negative AI assessment suspends the change. An amendment despite a negative assessment is permissible only following renewed independent review, publication of the reasons, approval by at least three quarters of each legislative chamber, approval in an informed public referendum, and constitutional judicial review. The current government may not unilaterally influence the selection, replacement, assessment, or operation of AI review systems. Changes to the AI oversight

framework itself require at least the same procedural safeguards. Until the requisite AI reliability has been demonstrated, strengthened and mutually independent human reviews substitute for AI assessments. Fundamental rights and independent oversight of power remain inviolable.

V. Recognition and return to society

Article 29 – Return to one's former profession

After government or chamber service, officeholders normally return to their former profession or equivalent employment. Job protection, opportunities for retraining, and appropriate compensation during service must be guaranteed by law. No special political pensions detached from normal employment histories may arise.

Article 30 – Housing security after conscientious service

Anyone who has fulfilled their civic service conscientiously and without serious breach of duty receives appropriate, comfortable housing security for life. This benefit does not depend on short-term popularity or the political evaluation of individual decisions. The precise form of housing entitlement, limits of the benefit, and treatment of family members must be defined by law.

Article 31 – Hall of Public Service

A public Hall of Public Service records the terms, decisions, achievements, and documented failures of all governments. Exceptional contributions may receive special recognition following independent and transparent evaluation, including long-term assessment where appropriate. Recognition confers neither new public power nor special financial entitlements. The hall serves both public remembrance and institutional learning.

VI. Threats and extraordinary public powers

Article 32 – Conditions for an emergency

Extraordinary powers may be activated only where a specific and serious danger is approaching within a timeframe in which ordinary procedures cannot prevent additional harm in time; ordinary powers are insufficient; the proposed extraordinary measures are suitable and necessary; and no equally effective, less intrusive alternative exists. Every condition must be substantiated and explained.

Article 33 – Severity and urgency of danger

Potential damage, likelihood, temporal urgency, and irreversibility must be assessed separately. The sheer scale of a long-term social, economic, or environmental threat does not in itself justify extraordinary powers. Additional powers may increase in response to acute danger only within fixed constitutional limits.

Article 34 – Strict limitation to a specified purpose

Each extraordinary power must be authorised separately, identifying the danger, purpose, permitted actions, responsible persons, and maximum duration. It may not be used for unrelated political goals or transferred to another crisis. It expires immediately once it is no longer necessary. A new danger requires separate authorisation.

Article 35 – Time limits and renewal

Provisional immediate measures may be taken in the face of imminent danger without prior full adversarial review, but are subject to immediate independent oversight. Extraordinary powers expire automatically unless confirmed within short statutory deadlines. Unilateral extensions are prohibited. Authorisations must be reviewed regularly, with tighter intervals as the intrusiveness of measures increases.

Article 36 – Subsequent review and responsibility

Measures taken during an emergency must be recorded continuously insofar as possible. After the emergency, an independent review examines their lawfulness, proportionality, and actual effects. Responsibility must be assessed in light of information available when decisions were made and of any breach of duty; a defensible decision taken under uncertainty does not constitute misconduct merely because it later fails.

Article 37 – Continuity of the rule of law

Even during an emergency, the independent judiciary, fundamental constitutional institutions, and the core of fundamental rights remain protected. An emergency grants no national government powers over other states beyond those arising under lawful agreements. International cooperation must be prepared in advance, not replaced by unilateral claims to power.

VII. Constitutional development

Article 38 – Constitutional amendment

Amendments to rules governing selection, oversight, powers, or fundamental rights require independent adversarial review, qualified majorities in both chambers, and an informed public referendum. After AI review has been activated, amendments to eligibility requirements are additionally subject to the qualified AI veto and its narrowly restricted override procedure under Article 28. Other majority thresholds, initiative rights, participation requirements, and constitutional judicial procedures must be specified conclusively in the next draft.

Article 39 – Introduction and piloting

Introducing this constitutional order requires separate, democratically legitimate transitional legislation. Before broad implementation, selection processes, knowledge assessments, citizens' assemblies, oversight arrangements, and dispute-resolution mechanisms should be tested scientifically in limited, voluntary pilot programmes for functionality, fairness of participation, and risks of abuse.

Appendix: Status of this draft

This draft constitution is neither binding law nor final. The following sections explicitly distinguish agreed guiding principles from additional proposals requiring detailed decisions or scientific validation.

Principles agreed in the drafting process

- Public leadership is a time-limited civic duty with justified exemptions, not a permanent career.
- Members of government and both legislative chambers are chosen by lot; suitability screening applies to government office.

- Binding votes on substantive issues require topic-specific knowledge; access to learning must be open to everyone.
- Former governments provide advice for two years after a transition, without power to issue instructions.
- Strict psychological screening and regular independent reviews during the term of office.
- Three dimensions of suitability: personal integrity, role-specific minimum cognitive capacity, and defined professional expertise, examined through multiple independent and regularly reviewed assessments.
- Six months of practical social experience under conditions resembling those of the lowest-income ten percent, while protecting essential needs.
- Important decisions receive independent review expressly tasked with attempting to disprove them.
- Institutions under oversight may not unilaterally weaken their own oversight rules.
- Future changes in eligibility rules will be subject to independent AI assessment with a qualified veto once sufficiently reliable systems become available. A negative assessment can be overridden only under exceptionally demanding democratic and legal conditions.
- Conscientious officeholders receive lifelong housing security; exceptional contributions are honoured in the Hall of Public Service.
- Emergency powers require acute necessity, strict purpose limitation, defined time limits, and subsequent review.

Additional proposals awaiting confirmation

- A collegial governing council with rotating chair rather than a permanently superior head of government.
- Four-year government terms and shorter, staggered terms for the two chambers.
- Defined public referendum initiative thresholds and two-thirds majorities for special constitutional amendments.
- At least three mutually independent AI systems as a target architecture; their scientifically validated deployment and decision procedure remain to be specified.
- A separate integrity council with structurally distinct investigation, sanctions, and appeals functions.
- Constitutionally defined post-office cooling-off periods and detailed limits on compensation.
- Binding wording and scope of the catalogue of fundamental rights and the organisation of the independent judiciary.

Open constitutional questions

- Who drafts and reviews referendum questions, learning materials, and passing thresholds?
- How are fields of expertise, qualification thresholds, and the composition of the Chamber of Expertise determined?
- How can minimum cognitive abilities be measured objectively and with minimal bias, and what reliable evidence would justify role-specific exclusion?
- How many people serve in government and the chambers, how are alternates appointed, and how can terms end early?
- How does legislation proceed when the chambers remain deadlocked or urgent action is needed?

- How will taxation, budgets, municipalities, regions, public administration, international treaties, and defence be organised?
- How is compulsory civic service reconciled with freedom of conscience and a very long period of mandatory government service?
- How can governmental success be assessed without rewarding popular short-term measures?
- Which oversight bodies can immediately halt emergency powers, and how will they themselves be supervised?
- How will powerful AI systems be independently audited, divergent AI judgements handled, and AI vetoes reviewed under the rule of law in the event of technical or systematic failures?

Next steps

For version 0.3, the vulnerability of eligibility screening to manipulation, the actual predictive value of psychological assessments, the design and oversight of knowledge tests, possible dependencies between AI systems, and escalation and failure-handling procedures for the AI veto should undergo adversarial stress-testing. The catalogue of fundamental rights, the judiciary, public administration, and public finances also require more detailed legal development.